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Case Number: 26STCP02760 Hearing Date: September 24, 2026 Dept: 509

Vivek Shah v. Intermap Technologies, Inc.

MOTION REQUIRING PETITIONER TO FURNISH SECURITY

MOVING PARTY: Respondent Intermap Technologies, Inc.

RESPONDING PARTY(S): Petitioner Vivek Shah

STATEMENT OF MATERIAL FACTS AND/OR PROCEEDINGS:

Petitioner Vivek Shah (Petitioner) filed this action seeking to send a dispute with defendant Intermap Technologies, Inc. (Respondent) to binding arbitration. In the underlying dispute, Petitioner asserts that Respondent violated the California Invasion of Privacy Act (CIPA).

On August 26, 2026, Respondent filed a motion requiring Petitioner to furnish security as a vexatious litigant. Petitioner opposed.

TENTATIVE RULING:

Respondent's Motion to Furnish Security is GRANTED.

The amount of security in the instant action is set as \$20,000.00 to be furnished within 60 days of this order. If Petitioner fails to adequately furnish said security within 60 days, the action shall be dismissed pursuant to Code of Civil Procedure, section 391.4.

An OSC Re: Dismissal for Petitioner's Failure to Post the \$20,000.00 Security is scheduled for November 30, 2026, at 8:30 a.m.

This action is otherwise stayed until 10 days after the Petitioner adequately posts the required bond.

Respondent to give notice.

DISCUSSION:

Motion Requiring Petitioner to Furnish Security

I. Judicial Notice

Respondent requests judicial notice of Exhibits A-K.

Petitioner requests judicial notice of Exhibits 1-3.

Pursuant to the parties' requests, the Court GRANTS judicial notice of Respondent's Exhibits A-K and Petitioner's Exhibits 1-3.

II. Legal Standard

Code of Civil Procedure, section 391.1(a) provides:

In any litigation pending in any court of this state, at any time until final judgment is entered, a defendant may move the court, upon notice and hearing, for an order requiring the plaintiff to furnish security or for an order dismissing the litigation pursuant to subdivision (b) of Section 391.3. The motion for an order requiring the plaintiff to furnish security shall be based upon the ground, and supported by a showing, that the plaintiff is a vexatious litigant and that there is not a reasonable probability that they will prevail in the litigation against the moving defendant.

In determining whether the plaintiff has a reasonable probability of prevailing, the "court shall consider any evidence, written or oral, by witnesses or affidavit, as may be material to the ground of the motion." (Code of Civ. Pro. § 391.2.) "[I]f, after hearing the evidence upon the motion, the court determines that the plaintiff is a vexatious litigant and that there is no reasonable probability that the plaintiff will prevail in the litigation against the moving defendant, the court shall order the plaintiff to furnish, for the benefit of the moving defendant, security in such amount and within such time as the court shall fix." (Code of Civ. Pro. § 391.3(a).)

Thus, "[i]n pending litigation, a defendant may have the plaintiff declared a vexatious litigant and, if the plaintiff has no reasonable probability of prevailing, ordered to furnish security. If the plaintiff fails to furnish the security, the action will be dismissed." (Shalant v. Girardi (2011) 51 Cal.4th 1164, 1171 [citing §§ 391.1–391.6].)

In moving for an order requiring a vexatious litigant to post security, the defendant has the burden of showing there is no reasonable likelihood plaintiff will prevail in the action. (Golin v. Allenby (2010) 190 Cal.App.4th 616, 640, 642.) "A court's decision that a vexatious litigant does not have a reasonable chance of success in the action is based on an evaluative judgment in which the court weighs the evidence." (Id. at p. 636.)

III. Analysis

A. Petitioner is a Vexatious Litigant

As a threshold issue, Petitioner has already been declared a vexatious litigant in *Shah v. Crain Communications, Inc.*, No. 2:26-cv-03070-RGK-CTS (C.D. Cal.). (RJN Ex. A.) Therefore, this element is met. (*Hupp v. Solera Oak Valley Greens Assn.* (2017) 12 Cal.App.5th 1300, 1311 ["Where a plaintiff has already been declared vexatious, a defendant moving under section 391.7 need not again establish the plaintiff's status."])

In opposition, Petitioner argues that this action arises from different facts than the federal action. Code of Civil Procedure, section 391(a)(4) states that a vexatious litigant means any person that "[h]as previously been declared to be a vexatious litigant by any state or federal court of record in any action or proceeding based upon the same or substantially similar facts, transaction, or occurrence." In the Federal action, "[t]he Court declares Plaintiff Vivek Shah a vexatious litigant; A Prefiling Order is hereby entered against Plaintiff for any new case filed in the Central District of California that alleges any claims arising under the California Invasion of Privacy Act ("CIPA") or other related digital privacy claims." (RJN Ex. A at p. 11.) This action appears entirely rooted in Petitioner's assertion of his CIPA or digital privacy claims against a similarly situated defendant. Here, Petitioner went onto a website, identified certain features on that website, and filed an action. (Shah Decl.) These are substantially similar facts underpinning Petitioner's actions in the Federal action which led to his vexatious litigant status. (RJN Ex. A.) The Court finds the facts of this action to be substantially similar to those in *Shah v. Crain Communications, Inc.*, No. 2:26-cv-03070-RGK-CTS (C.D. Cal.) to find Petitioner is a vexatious litigant under Section 391(b)(4).

Further, even if Petitioner did not meet the definition of a vexatious litigant under Section 391(b)(4), considering the totality of the evidence, the Court, in its discretion, would declare Petitioner a vexatious litigant under Section 391(b)(1). Under either section, Petitioner would be declared a vexatious litigant.

As a result, the Court turns to Petitioner's probability of prevailing in this action.

B. Petitioner's Probability of Prevailing

Respondent argues it is highly likely that they, and not Petitioner, will prevail in this action. The Court agrees.

"[T]o satisfy its burden of showing that the plaintiff has no reasonable probability of prevailing, the defendant must show that the plaintiff's recovery is foreclosed as a matter of law or that there are insufficient facts to support recovery by the plaintiff on its legal theories, even if all the plaintiff's facts are credited." (*Deveraux v. Latham & Watkins* (1995) 32 Cal.App.4th 1571, 1582-83.) Here, Petitioner's litigation is a special proceeding seeking an order compelling arbitration. The question is therefore whether Petitioner has a reasonable probability of obtaining the judicial relief requested in his petition.

In his petition, "Petitioner Vivek Shah ("Petitioner") brings this Petition pursuant to California Code of Civil Procedure sections 1281, 1281.2, and 1281.4, the Federal Arbitration Act, 9 U.S.C. section 2, and, conditionally, Civil Code sections 1799.201 and 1799.208, to compel Respondent Intermap Technologies, Inc. ("Respondent") to arbitrate under Respondent's Terms of Use." (Petition at p. 1.) Petitioner states that "Petitioner accepts the obligation to arbitrate but primarily requests arbitration in California under California law because he resides here, accessed Respondent's website here, elected to accept the Terms here, and alleges that the challenged violations occurred here. Petitioner initiated AAA arbitration" in California. (Petition at p. 2.)

However, the Terms and Conditions that support Petitioner's right to arbitration plainly state that:

These Terms and your use of the Site are governed and interpreted in accordance with the laws of the State of Colorado without regard to its conflicts of law provisions. The United Nations Convention on the International Sale of Goods does not apply. Any dispute arising between the parties out of or in connection with this Agreement will be finally resolved by arbitration conducted by one arbitrator in Denver, Colorado pursuant to the International Arbitration Rules of the American Arbitration Association ("AAA") applicable to commercial disputes.

(Shah Decl., Ex 2.)

Indeed, it appears that despite seeking to enforce the Terms and Conditions to his benefit, Petitioner has unilaterally chosen a venue not supported by the same. This fact materially alters the probability of success on the petition because Petitioner has failed to demonstrate Respondent refused to arbitrate under the terms of the Terms and Conditions.

1. Civil Code, Section 1799.208 Does Not Apply

As an initial matter, the Court addresses Petitioner's argument that the Terms and Conditions are voidable.

Civil Code, section 1799.208 states:

(a) A seller shall not require a consumer to agree to a provision that would do either of the following:

(1) Require the consumer to arbitrate outside of California a claim arising in California.

(2) Require the consumer to arbitrate a controversy arising in California under the substantive law of a state other than California.

(b) Any provision of a contract that violates subdivision (a) is voidable by the consumer, and if a provision is rendered void at the request of the consumer, the matter shall be adjudicated in California and California law shall govern the dispute.

(Civ. Code, § 1799.208)

However, setting aside the parties' respective arguments as to the FAA preemption, the evidence before this Court clearly demonstrates that this section plainly does not apply to this instant action regardless of any preemption.

A consumer "means a natural person who has entered into a consumer contract with a seller" and a seller "means a person who has entered into a consumer contract with a consumer." (Civ. Code, §1799.201, subd (a) and (h).) However a consumer contract "means a writing prepared by a seller and, except as provided in subdivision (c) of Section 1799.202, signed, or to be signed, by a consumer, which provides (1) for the sale or lease of goods or services that are purchased or leased primarily for personal, family, or household purposes." (Id. at subd. (b), emphasis added.)

Here, the undisputed evidence is clear that Petitioner did not purchase or lease anything from Respondent. (Shah Decl.) That fact alone renders the Terms and Conditions outside the scope of the definition of a "consumer contract" and outside the scope of Civil Code, section 1799.208. Therefore, the Terms and Conditions are not voidable and Civil Code, section 1799.208 does not provide grounds for arbitration beyond the scope of the Terms and Conditions.

2. Petitioner Did Not Demand Arbitration Pursuant to the Terms and Conditions

Now, in the petition, Petitioner requests this Court send this action to arbitration pursuant to Code of Civil Procedure, sections 1281.

"[S]ection 1281.2 does require a party seeking to compel arbitration to plead and prove a prior demand for arbitration under the parties' arbitration agreement and a refusal to arbitrate under the agreement." (Mansouri v. Superior Court (2010) 181

Cal.App.4th 633, 640 (Mansouri).) “The only reasonable construction of the statutory language that conforms to such intent, is to require for a petition to compel arbitration the pleading and proof of (1) the parties’ written agreement to arbitrate a controversy [Citation]; (2) a request or demand by one party to the other party or parties for arbitration of such controversy pursuant to and under the terms of their written arbitration agreement; and (3) the refusal of the other party or parties to arbitrate such controversy pursuant to and under the terms of their written arbitration agreement.” (Id. at p. 641, emphasis in original.)

Here, Petitioner only demonstrated that Respondent did not proceed in arbitration in California. (Shah Decl.) There is no evidence of a demand for arbitration in Denver, Colorado pursuant to the Terms and Conditions or any rejection of such demand. (Shah Decl.) Therefore, Petitioner’s initiation of arbitration in California, and Respondent’s failure to participate in such arbitration, does not evidence a refusal to arbitrate under the Terms and Conditions and the petition seeks relief unavailable as a matter of law.

Petitioner argues that *HM DG, Inc. v. Amini* (2013) 219 Cal.App.4th 1100 (HM DG) is persuasive in this matter. However, HM DG and this action are dissimilar. There, plaintiff sent a demand which “states, in no uncertain terms: ‘Please accept this letter as defendants’ demand that all of the claims raised by plaintiffs in their complaint in the Action, as well as the claims to be made by defendants, be arbitrated per the ‘Arbitration Clause’ found on Page 3 of the June 24, 2010 ‘Project Proposal and Agreement’.” (Id. at p. 1112.) No such demand letter exists here. (See Shah Decl.)

In the end, “[s]uch demand and refusal is what requires and justifies the intervention of the court to order arbitration under the agreement. It makes no sense for this language to be read to allow a petitioner to compel arbitration on allegations and proof of a written agreement to arbitrate the controversy, but with allegations and proof that arbitration under some other statutory scheme or contract was offered and refused. The Legislature plainly intended section 1281.2 to provide a procedural device for enforcing the parties’ written arbitration agreement if one or more of the parties would not agree to such arbitration.” (Mansouri v. Superior Court, supra, 181 Cal.App.4th at p. 641.) The undisputed evidence demonstrates that Petitioner failed to demand arbitration under the Terms and Conditions. Therefore, any conduct, implied or otherwise, does not demonstrate a refusal to arbitrate under the Terms and Conditions. As a result, Petitioner has no legal grounds to demand arbitration. Therefore, the probability of obtaining the judicial relief requested in the petition is highly unlikely.

Accordingly, Respondent’s Motion to Furnish Security is GRANTED.

C. Amount of Security

“Security” is defined as “an undertaking to assure payment, to the party for whose benefit the undertaking is required to be furnished, of the party’s reasonable expenses, including attorney’s fees and not limited to taxable costs, incurred in or in connection with a litigation instituted, caused to be instituted, or maintained or caused to be maintained by a vexatious litigant.” (Code of Civ. Pro. § 391, subd. (c).) The judge is ultimately responsible for fixing an appropriate amount of security to cover the moving party’s reasonable expenses. (Code of Civ. Pro. § 391.3, [“the court shall order the plaintiff to furnish, for the benefit of the moving defendant, security in such amount and within such time as the court shall fix.”])

Here, the declaration of attorney Aaron R. Goldstein declares that \$75,000 would be the reasonable expenses in opposition to this petition. (Goldstein Decl. ¶8.) However, the Court finds reasonable expenses to be less than the requested amount given the likely resolution of this action as discussed above. The Court finds a reasonable security to be \$20,000.

The amount of security in the instant action is set as \$20,000. If Petitioner fails to adequately furnish said security within 60 days, the action “shall be dismissed as to the defendant for whose benefit it was ordered furnished.” (Golin v. Allenby (2010) 190 Cal.App.4th 616, 634.)

D. This Matter is Stayed Until 10 Days After Security is Furnished

"Under the plain language of section 391.6, the entirety of the litigation is stayed once the defendant files a [security] motion." (Hanna v. Little League Baseball, Inc. (2020) 53 Cal.App.5th 871, 875-76.) The automatic "stay shall remain effective until 10 days after the motion is denied or 10 days after the security is furnished. [Citation.] Section 391.6 does not carve out any exception for proceedings that may continue during that period except for the dismissal of the action under section 391.3[(b)]." (Ibid.)

This action is otherwise stayed, until 10 days after Petitioner furnishes the security.

IT IS SO ORDERED.

Dated: September 24, 2026 _____

Randolph M. Hammock

Judge of the Superior Court

Any party may submit on the tentative ruling by contacting the courtroom via email at SMCDept509@lacourt.ca.gov by no later than 4:00 p.m. the day before the hearing. All interested parties must be copied on the email. It should be noted that if you submit on a tentative ruling the court will still conduct a hearing if any party appears. By submitting on the tentative you have, in essence, waived your right to be present at the hearing, and you should be aware that the court may not adopt the tentative, and may issue an order which modifies the tentative ruling in whole or in part.